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New York Record Sealing & Clean Slate Agent Training Reference

A complete operational knowledge base for clearing criminal records in New York: non-conviction sealing, the marijuana destruction remedy, treatment-based and discretionary sealing, and the automatic Clean Slate Act — eligibility, waiting periods, exclusions, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of New York (the court of conviction; OCA / DCJS administer sealing statewide)
Primary statutes	Criminal Procedure Law §§ 160.50, 160.55, 160.57, 160.58, 160.59; MRTA marijuana destruction
Controlling change	Clean Slate Act (CPL 160.57), L.2023 ch.631 — automatic sealing, effective November 16, 2024
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, during Clean Slate implementation (through Nov 2027)

VERIFY BEFORE RELYING

New York does NOT generally expunge criminal convictions — the remedy is SEALING, which hides the record from public and most private background checks but keeps it available to law enforcement, courts, prosecutors, and certain licensing and firearms authorities. The only true erasure is the MRTA marijuana destruction remedy. The Clean Slate Act (CPL 160.57) added AUTOMATIC sealing effective Nov 16, 2024, but OCA has until November 16, 2027 to implement it, so many eligible records are not yet sealed. The agent must not tell a user a conviction is “expunged” (except qualifying marijuana) and must not assume Clean Slate has already sealed a record — verify.

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How the agent should use this document

New York has FIVE mechanisms and the agent must route to the right one. (1) **Non-conviction sealing** (CPL 160.50 full / 160.55 for violations) is automatic when a case ends favorably. (2) **Marijuana destruction/expungement** (MRTA) is the one true erasure, for unlawful possession and fifth-degree possession of marijuana. (3) **Conditional / treatment sealing** (CPL 160.58) seals certain drug convictions after completing judicial diversion or treatment. (4) **Discretionary sealing** (CPL 160.59) lets a person petition to seal up to two convictions (max one felony) after 10 years. (5) **Automatic Clean Slate sealing** (CPL 160.57) seals eligible misdemeanors after 3 years and felonies after 8 years with no filing. The agent should always (1) determine conviction vs. non-conviction; (2) for non-convictions confirm 160.50/160.55 sealing already applies; (3) for convictions test Clean Slate automatic, then 160.59 petition, then 160.58 if drug-treatment-based; and (4) screen the exclusion lists.

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Statutory shorthand used throughout

CPL 160.50	Automatic SEALING on a favorable (non-conviction) termination — full sealing
CPL 160.55	Sealing where the case ends in a non-criminal VIOLATION or traffic infraction
MRTA	Marihuana Regulation & Taxation Act — DESTRUCTION/expungement of certain marijuana convictions
CPL 160.58	Conditional sealing after judicial diversion / substance-abuse treatment (drug offenses)
CPL 160.59	Discretionary SEALING by petition — up to 2 convictions, ≤ 1 felony, after 10 years
CPL 160.57	CLEAN SLATE — automatic sealing (3 yr misd / 8 yr felony); eff. 11/16/2024
DCJS / OCA	Div. of Criminal Justice Services / Office of Court Administration — administer sealing

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1. Eligibility rules

Five mechanisms, considered in routing order.

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Mechanism 1 — Non-conviction sealing (CPL 160.50 / 160.55)

When a case ends in the defendant's favor — dismissal, acquittal, declined prosecution, an adjournment in contemplation of dismissal (ACD) that is dismissed, or a vacated/overturned conviction — the record is SEALED automatically under CPL 160.50. Where the case ends in a non-criminal VIOLATION or traffic infraction, CPL 160.55 provides a more limited sealing. No application is needed; the court directs sealing at disposition.

Mechanism 2 — Marijuana destruction / expungement (MRTA)

The one true erasure in New York. Convictions for unlawful possession of marijuana and fifth-degree criminal possession of marijuana are expunged/destroyed automatically under the MRTA. A person may also request destruction of those records through OCA. Expunged marijuana convictions do NOT count toward the two-conviction limit under CPL 160.59.

Mechanism 3 — Conditional / treatment sealing (CPL 160.58)

A person convicted of certain drug or specified offenses who successfully completes a judicial-diversion or court-approved substance-abuse treatment program, and all other sentence terms, may have those convictions conditionally sealed. The sealing can be reopened on a subsequent arrest, and resealed if that arrest does not lead to conviction. This pathway is tied to treatment completion rather than a flat waiting period.

Mechanism 4 — Discretionary sealing by petition (CPL 160.59)

Enacted 2017. A person with a limited history may petition the sentencing court to seal up to TWO convictions, no more than ONE of which is a felony, after at least 10 years have passed since sentencing or release (whichever is later). Crimes from a single criminal transaction may be treated as one. The offense must be an “eligible offense” (Section 3). Grant is discretionary; the court weighs rehabilitation and the interests of justice.

Mechanism 5 — Automatic Clean Slate sealing (CPL 160.57)

Effective Nov 16, 2024. Eligible New York State convictions seal automatically after a waiting period — 3 years for misdemeanors, 8 years for felonies — measured from sentencing or release, whichever is later, with no conviction-free pending charges. No application is required. OCA/DCJS have until Nov 16, 2027 to seal the pre-existing back-catalog, so many records are pending.

AGENT GUIDANCE

Route by disposition and offense. Non-conviction → already sealed (160.50/160.55). Marijuana possession → MRTA destruction (true erasure). Drug conviction after treatment → 160.58. Other eligible convictions → Clean Slate automatic (3/8 yr) or a 160.59 petition to seal sooner / reach what Clean Slate doesn't.

Be precise: except MRTA marijuana, NY “clears” records by SEALING, not expungement — the record persists and stays visible to law enforcement, courts, and certain licensing/firearms authorities.

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2. Waiting periods

Waiting periods run from sentencing or release from incarceration, whichever is later. Time spent incarcerated after the target conviction extends the 160.59 clock by an equivalent amount.

Mechanism / matter	Remedy	Waiting period	Notes
Non-conviction (160.50)	Seal	None	Sealed at favorable disposition
Non-criminal violation (160.55)	Seal	None	Limited sealing at disposition
Marijuana possession (MRTA)	Destroy/ expunge	None	Automatic; OCA destruction on request
Drug conviction + treatment (160.58)	Conditional seal	On program completion	Reopens on new arrest
Clean Slate misdemeanor (160.57)	Seal (auto)	3 years	From sentencing/release; no pending charges
Clean Slate felony (160.57)	Seal (auto)	8 years	From sentencing/release; no pending charges
Discretionary petition (160.59)	Seal	10 years	≤ 2 convictions, ≤ 1 felony; eligible offense

The two conviction-sealing routes differ sharply in timing and effort. Clean Slate is automatic and faster (3 years misdemeanor / 8 years felony) but limited to its eligible set and still phasing in. The CPL 160.59 petition takes a longer 10-year wait and court approval but the person controls the timing and can file now rather than wait for the automatic system. For Clean Slate, any new conviction or pending charge during the waiting period restarts or blocks the clock.

AGENT GUIDANCE

Compute from sentencing or release, whichever is later. For a person between years 3/8 and 10, Clean Slate (if eligible) is the faster route; if the offense is outside Clean Slate, the 160.59 10-year petition may still reach it.

A new conviction or open charge resets/blocks both clocks — confirm no pending charges before indicating eligibility.

3. Disqualifying / ineligible offenses

The exclusion lists differ between the discretionary petition (160.59) and Clean Slate (160.57). The agent must apply the list matching the pathway.

A. Ineligible for CPL 160.59 discretionary sealing

An “eligible offense” is any NY crime EXCEPT the following, which can never be sealed under 160.59:

- Sex offenses under Penal Law Article 130, and any offense requiring sex-offender registration (Correction Law Art. 6-C).
- Child pornography / sexual performance by a child offenses under Article 263.
- Felony homicide offenses under Article 125.
- Violent felony offenses as defined in Penal Law § 70.02.
- Class A felonies.
- Felony conspiracy or attempt (Article 105 / attempts) where the underlying target offense is not itself eligible.

B. Ineligible for Clean Slate automatic sealing (160.57)

- Sex offenses and any offense requiring sex-offender registration.
- Non-drug Class A felonies — including murder and other top-tier felonies. (Drug-related Class A felonies under Penal Law Article 220 CAN still qualify.)
- Cases where the person received a life sentence.
- Any person with pending criminal charges — ineligible while a charge is open.
- Federal convictions and out-of-state convictions — Clean Slate reaches NY State convictions only.

Other categorical limits

- **Two-conviction / one-felony cap (160.59).** No more than two convictions, and no more than one felony, may be sealed by petition.
- **Mixed records.** If a person has both eligible and ineligible convictions, the eligible ones may still be sealed; the ineligible ones remain.
- **Sealed records still count.** A sealed conviction still counts as a prior for sentence-enhancement in any future case (160.59(10)).

VERIFY BEFORE RELYING

The 160.59 “eligible offense” definition and the Clean Slate exclusions turn on the exact Penal Law article and class of each conviction (e.g., whether a Class A felony is a drug offense under Article 220). The agent must map each conviction to its Penal Law citation and class and verify against the current statute before declaring it eligible — the offense label alone is not enough. Note also the Brooklyn DA guidance that pre-2007 PL 265.02(4) weapon convictions are not sealable.

AGENT GUIDANCE

The key Clean Slate nuance is the Class A felony split: non-drug Class A felonies are permanently excluded, but Article 220 drug Class A felonies can qualify. Check the article, not just the class. An open/pending charge disqualifies under both pathways — confirm the record is otherwise closed before advising relief.

4. Case outcome rules

Disposition and offense determine the mechanism and whether a filing is needed. This table is the agent's primary routing logic for New York.

Case outcome	Mechanism	Route	Standard / wait
Dismissed / acquitted / declined / ACD dismissed	160.50	Seal — automatic	At disposition
Convicted of non-criminal violation/infracton	160.55	Seal — automatic (limited)	At disposition
Marijuana possession conviction	MRTA	Destroy — automatic	None
Drug conviction + treatment completed	160.58	Conditional seal — motion	On completion
Eligible misdemeanor conviction	160.57 / 160.59	Auto (3 yr) or petition (10 yr)	No pending charges
Eligible felony conviction	160.57 / 160.59	Auto (8 yr) or petition (10 yr)	≤ 1 felony by petition
Excluded offense (Sec. 3)	—	Not sealable	Categorical bar

Effect of relief: a sealed record does not appear on background checks by employers, housing providers, or other non-law-enforcement entities, and the person may generally answer “no” to a criminal-record question. But sealed records remain accessible to law enforcement, prosecutors, and courts in a new criminal case; to fingerprint-based background checks for jobs involving children, the elderly, or vulnerable people; and for police/peace-officer employment and gun licensing. Federal and immigration authorities may also access them. Only the MRTA marijuana remedy actually destroys the record.

AGENT GUIDANCE

Tell users plainly that sealing is not erasure (except MRTA marijuana): the record persists and stays visible to the enumerated authorities, and still counts as a prior for sentencing.

For someone with an immigration concern, flag that sealed records remain accessible to immigration authorities and that sealing does not remove immigration consequences — recommend they consult an immigration attorney.

5. Required forms

Only the discretionary (160.59) and conditional (160.58) pathways require a filing; 160.50/160.55 and Clean Slate are automatic, and MRTA marijuana destruction is automatic (with an optional OCA destruction request). The NY courts publish a statewide 160.59 application.

CPL 160.59 discretionary sealing

- **Sealing Application** (Notice of Motion and Affidavit in Support of Sealing) — the statewide NY Courts form, sworn before a notary, identifying the conviction(s) and the reasons for sealing.
- **Certificate(s) of Disposition** — obtained from the court for each case to be sealed (the case/docket/indictment number and court name come from it); a separate request per case.
- A sworn statement on whether other sealing applications have been or will be filed, and copies of any such applications.

CPL 160.58 conditional sealing

- A motion in the sentencing court documenting successful completion of judicial diversion or the court-approved treatment program and all other sentence terms.

Automatic / destruction pathways

- **160.50 / 160.55 and Clean Slate (160.57):** no form — sealing is directed by the court / done by OCA-DCJS. The person verifies via a DCJS record review.
- **MRTA marijuana:** automatic; an optional request to OCA to destroy the records.

AGENT GUIDANCE

For a 160.59 petition, the Certificate of Disposition is the keystone attachment — the application cannot be completed without it, and a separate one is needed per case. Have the user request it first. Where relief is automatic (160.50/160.55/Clean Slate/MRTA), there is nothing to file; direct the user to verify status through a DCJS record review rather than preparing a motion.

6. Filing instructions

The CPL 160.59 discretionary-sealing sequence (the main by-motion pathway):

- 1 Confirm eligibility:** 10 years since sentencing or release, no more than two convictions and one felony, no pending charges, and each offense is an “eligible offense” (not on the Section 3 list).
- 2 Obtain a Certificate of Disposition** from the court for each case to be sealed (fee: \$5 outside NYC, \$10 within the five boroughs). Submit a separate request per case.
- 3 Complete the Sealing Application** (Notice of Motion and Affidavit in Support), stating the convictions and the reasons for sealing, and sign it before a notary public.
- 4 File the application in the court of conviction** — for multiple eligible offenses, the court where the most serious offense was decided (or, if equal class, where last convicted).
- 5 Serve the District Attorney** for that county; the DA may consent or object. A sealing unit (e.g., in Brooklyn) may help facilitate unopposed applications.
- 6 Court review / hearing.** If the DA objects, the court holds a hearing; otherwise it may decide on the papers, weighing rehabilitation and the interests of justice.
- 7 Order.** If granted, the court orders sealing; DCJS and the courts seal the record from public and most private access while retaining the law-enforcement and licensing exceptions.

AGENT GUIDANCE

Venue is offense-driven: file where the most serious offense was decided, or, for same-class offenses, where the person was last convicted. Pin that down before filing.

Encourage the user to file 160.59 now rather than wait for Clean Slate if they meet the 10-year rule — the automatic back-catalog may not reach them until 2027.

7. Court-specific quirks

- **No true expungement (except marijuana).** NY “clears” records by sealing; only MRTA marijuana convictions are destroyed. Always use the accurate word with users.
- **Clean Slate is phasing in.** Automatic sealing took effect 11/16/2024 but OCA/DCJS have until 11/16/2027 to process the back-catalog — a record that should auto-seal may not be sealed yet; a person can petition for review if it is overdue.
- **Two parallel conviction routes.** Clean Slate (automatic, 3/8 yr) and 160.59 (petition, 10 yr) coexist; the petition is the way to seal sooner or to reach offenses outside Clean Slate.
- **Certificate of Disposition is gatekeeping.** The 160.59 application is built around it; the court fee is \$5 outside NYC / \$10 in the five boroughs, per case.
- **County DA sealing units.** Some offices (e.g., Brooklyn) actively facilitate 160.59 applications and publish the ineligible-offense list in the form instructions.
- **Sealed still counts as a prior.** Under 160.59(10) a sealed conviction is still a predicate for sentence enhancement in a later case.
- **Class A felony split for Clean Slate.** Non-drug Class A felonies are excluded, but Article 220 drug Class A felonies can qualify — a frequently misunderstood point.

AGENT GUIDANCE

When a user believes Clean Slate already cleared their record, have them verify via a DCJS record review before relying on it — implementation runs to 2027.

Lead the 160.59 process with the Certificate of Disposition; nothing else can be completed without it.

8. Fee information

Item	Amount	Note
Certificate of Disposition (outside NYC)	\$5 per case	Required for each 160.59 case
Certificate of Disposition (within NYC)	\$10 per case	Five boroughs
CPL 160.59 sealing application	No separate filing fee	Court motion; notarization needed
Automatic sealing (160.50/160.55/Clean Slate)	\$0	No filing
MRTA marijuana destruction	\$0	Automatic; optional OCA request
DCJS record review (your own record)	DCJS fee	To confirm record / sealing status
Attorney fees (if represented)	Varies	Not required; legal-aid sealing help available

New York is inexpensive to navigate. Automatic sealing and marijuana destruction cost nothing, and the 160.59 motion itself carries no separate filing fee — the only near-certain costs are the Certificate of Disposition (\$5 outside NYC, \$10 in the five boroughs, per case) and any DCJS record-review fee. Legal-aid organizations and county DA sealing units assist pro se applicants at no cost.

AGENT GUIDANCE

Quote the \$5/\$10 Certificate of Disposition fee per case and note the 160.59 motion has no separate filing fee — cost is rarely the barrier in NY. Point users to legal aid or a county DA sealing unit for free help.

Lead with the free automatic routes (160.50/160.55/Clean Slate/MRTA) and have users verify status via DCJS before spending anything.

9. Criminal history (DCJS) request process

Reviewing the record first confirms dispositions, computes the waiting period, and reveals whether automatic sealing has occurred.

A. Statewide history — NY Division of Criminal Justice Services (DCJS)

- DCJS maintains the New York State criminal history; a person may obtain their own Record Review (fingerprint-based) for a fee.
- Use the Record Review to confirm each disposition, compute the 3/8/10-year periods, and check whether Clean Slate or 160.50/160.55 sealing has already been applied.

B. Court records — court of conviction (Certificate of Disposition)

- The court of conviction issues the Certificate of Disposition needed for each 160.59 case; it supplies the case/docket/indictment number and court name used in the application.

C. Federal — FBI Identity History Summary

- For records that may extend beyond New York, the FBI fingerprint-based Identity History Summary is the federal equivalent; NY sealing reaches NY State records only.

VERIFY BEFORE RELYING

DCJS Record Review methods and fees, and the Clean Slate verification process, can change. The agent should verify the current DCJS request process and fee at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the DCJS Record Review as step one — it grounds eligibility and shows what is already sealed. Direct users to DCJS for the statewide history and to the court of conviction for the Certificate of Disposition required by a 160.59 petition.

10. Sample applications and completed examples

Only 160.59 (and 160.58) require a filing; the others are automatic. The examples below show structure and key recitals for the petition plus the automatic pathways. Names, dates, and identifiers are fictional and illustrative.

Example A — CPL 160.59 Sealing Application (discretionary, 10-year)

CRIMINAL COURT / SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS
IN RE: ANDRE L. CARTER (Applicant)

NOTICE OF MOTION AND AFFIDAVIT IN SUPPORT OF SEALING (CPL 160.59)

1. Applicant asks the Court to seal the following conviction(s):
 - Attempted burglary 3rd (E felony), Kings Co., Ind. 1234/2013, sentenced 05/10/2014.
 - Petit larceny (A misd.), Kings Co., Dkt. 2012KN00567, sentenced 02/01/2013.
 2. More than 10 years have passed since sentencing/release on each; Applicant has not been incarcerated since.
 3. Applicant has no more than two convictions and no more than one felony, and has no open or pending criminal charges.
 4. Neither offense is an excluded offense under 160.59 (not a sex, Article 263, Article 125 homicide, 70.02 violent, or Class A felony, and not an ineligible attempt/conspiracy).
 5. Reasons for sealing (sworn): stable employment, family responsibilities, no new arrests, and rehabilitation.
- Attached: Certificate of Disposition for each case; sworn statements re other applications. Notarized. Served on the Kings County District Attorney.

Examples B, C & D — Automatic / destruction pathways (no filing)

B. NON-CONVICTION SEALING (CPL 160.50):

A charge dismissed or resulting in acquittal is sealed automatically at disposition. No application; confirm via DCJS.

C. CLEAN SLATE AUTOMATIC SEALING (CPL 160.57):

An eligible misdemeanor conviction seals automatically 3 years after sentencing/release (8 years for an eligible felony), with no pending charges. OCA/DCJS process the back-catalog through 11/16/2027; verify status via a DCJS Record Review. If overdue, petition the court for review.

D. MARIJUANA DESTRUCTION (MRTA):

Convictions for unlawful possession and 5th-degree possession of marijuana are expunged/destroyed automatically. An optional request to OCA can confirm destruction. These do NOT count toward the 160.59 two-conviction limit.

Proposed Order (petition pathway)

A 160.59 application is decided by court order. If granted, the order directs DCJS and the courts to seal the specified conviction(s) from public and most private access, while preserving access for law enforcement,

prosecutors, courts, licensing for vulnerable-population and police/peace-officer roles, and firearms licensing, as the statute provides.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes New York statutes and common practice and is not legal advice. New York added automatic sealing under the Clean Slate Act (CPL 160.57) effective Nov 16, 2024, with implementation through Nov 2027; the agent must verify the current text of CPL §§ 160.50–160.59, the eligible-offense and Clean Slate exclusion lists, DCJS Record Review procedures, and Clean Slate implementation status before relying on any rule here.